

Conclusion

For the reasons analyzed above, **Defendants' Motion to Strike is granted with leave to amend. The Court grants all requests to strike punitive damage allegations against Defendants The Party Pros Disc Jockey And Event Services, Inc., Party Pros, Denon & Doyle and the individual Doyle Defendants, and denies all requests to strike punitive damages against Defendants Spencer and McMichael.**

13. 9:00 AM CASE NUMBER: C25-00893

CASE NAME: JESSE DAVIS VS. KATHRYNE DANIELS

FILED BY PLAINTIFF

FILED BY:

TENTATIVE RULING:

Plaintiff Jesse Davis's Motion for Summary Judgment is **denied**.

Background

This is a breach of contract action arising from a dispute between Plaintiff Jesse Davis and his mother, Defendant Kathryne A. Daniels, over real property located at 2440 Orchard Lane, Martinez (the Property). Plaintiff alleges that in 2011, the parties entered into a contract under which Plaintiff would repay Defendant \$35,000 and make mortgage-related payments over time in exchange for title to the Property. Plaintiff alleges Defendant breached this agreement by instead transferring title into her own trust, and later, in August 2025, conveying title to Plaintiff subject to the "unilateral condition" that property transfer represented the entirety of his inheritance and that he would receive no further distributions from Defendant's trust. Plaintiff seeks summary judgment in his favor for damages of approximately \$500,000, based on the current market value of the Property. (See Declaration of Plaintiff Jesse Davis filed on May 20, 2026.) Plaintiff's theory appears to be that he is entitled to keep the Property and separately recover its market value in damages, effectively seeking both the house and the equivalent of a further inheritance distribution he claims he was promised.

Defendant opposes the motion, arguing that no enforceable contract ever existed, that she never signed or agreed to the terms reflected in Plaintiff's Exhibit A; and that, in any event, she has already conveyed title to the Property to Plaintiff via grant deed dated August 27, 2025.

Discussion

As a threshold matter, Plaintiff's submissions in support of this motion were handwritten and, in significant part, difficult to read. The Court does not require Plaintiff to use a computer. However, all papers submitted to the Court must be legible. Future filings may be disregarded to the extent the Court cannot determine their contents.

Where a plaintiff seeks summary judgment, the burden is to produce admissible evidence on each

element of a cause of action entitling him or her to judgment. (Code Civ. Proc. § 437c (p)(1); *S.B.C.C., Inc. v. St. Paul Fire & Marine Ins. Co.* (2010) 186 Cal.App.4th 383, 388.) If plaintiff meets this initial burden, the burden then shifts to the defendant "to show that a triable issue of one or more material facts exists as to that cause of action." (Code Civ. Proc. § 437c(p)(1).) In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn from it, and must view such evidence and inferences in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

To prove a claim for breach of contract, a plaintiff must prove the following elements: (1) the existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach. (*Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1230.)

A plaintiff moving for summary judgment on a breach of contract cause of action must submit admissible evidence sufficient to establish each of these elements. As relevant here, Plaintiff's evidence must be sufficient to establish the existence of the contract. Plaintiff claims that Exhibit A to the Declaration of Jesse Davis, filed on May 20, 2026 in support of the motion, constitutes the contract between the parties. Exhibit A, which is difficult to read, appears to state:

I Jesse Davis and Harmony Barry agree to repay Kathrynne Daniels back \$35,000 as a down payment on a \$106,000 home at 2440 Orchard Ln, Martinez, CA 94553. The mortgage [illegible] property tax and maintenance appliances plumbing, heat etc. After 35k has been deposited over time, lender will put the house solely in the borrower's name or name them as beneficiaries "Jesse" [illegible] and with Harmony as wife. 35K without interest as a loan gift for the upcoming wedding 6/26/11[.]

Thanks Ma!
Your [sic] the best!

The document purports to be dated April 11, 2011, and purports to bear the signatures of Kathrynne Daniels, Jesse Davis, and Harmony Barry. The document bears the written notation, made by Plaintiff, presumably, "Contract signed by defence [sic]."

Exhibit A does not say what Plaintiff claims it says. In particular, the document says nothing about Plaintiff retaining any future inheritance, or about Defendant preserving or guaranteeing such an inheritance. But even assuming Exhibit A said what Plaintiff claims it does and the burden shifted, Defendant's evidence in opposition to the motion is sufficient to raise a triable issue of fact.

Defendant submits a declaration in which she states she never signed Exhibit A as a contract for the sale or transfer of the Property, and never agreed, in that form or anything like it, to transfer title in exchange for \$35,000, mortgage payments, rent payments, or anything else. (Declaration of Kathrynne A. Daniels filed June 22, 2026, ¶ 7.) Defendant did not agree, in Exhibit A or any other writing, that the transfer of the Subject Property would preserve, guarantee, replace, or measure any future inheritance to Plaintiff, nor did she agree that the market value of the property would measure

damages for any alleged breach. (Daniels Decl., ¶ 9.) Defendant's supplemental declaration filed August 4, 2026 further states that the signature page on Plaintiff's Exhibit A is identical to the signature page of an April 5, 2011 lease agreement between the parties, which Defendant located and attached as Exhibit 1. (Supp. Daniels Decl., ¶¶ 3–4.) At the time Defendant signed that page, it contained only the signature lines for herself and Plaintiff, with none of the handwritten language now appearing above the signatures on Exhibit A. (Supp. Daniels Decl., ¶ 5.) Defendant never authorized anyone to add that language after she signed, and states she would not have signed the document had those terms been present. (Supp. Daniels Decl., ¶¶ 8, 10.) Based on this evidence, Defendant contends that Exhibit A appears to have been altered after execution, with the handwritten terms Plaintiff relies on added to a signature page taken from an unrelated lease agreement.

In his reply, Plaintiff argues that the existence of the contract is proven by the parties' objective conduct. He emphasizes that Defendant executed a "multi-step transaction" to remove the Property from her trust and deed the property to Plaintiff in August 2025. He argues that the parties' course of performance is the most reliable evidence of the contract's existence and asks why Defendant would have deeded him the Property if no contract existed. He points to an August 27, 2025 letter from Defendant's counsel, in which counsel characterizes the Property and transfer as constituting "the entirety of your inheritance" and stating that Plaintiff would receive "no further distribution" from Defendant's trust, appearing to argue that if Defendant's lawyer characterized the Property as his inheritance, this is an admission that Defendant always intended to give the Property to him as part of his inheritance.

These arguments do not persuade the Court that the motion should be granted. In ruling on a motion for summary judgment, courts must "liberally construe the evidence in support of the party opposing summary judgment and resolve all doubts concerning the evidence in favor of that party." (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1037.) Only when the inferences are indisputable may the court decide the issues as a matter of law. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 840.) Critically, "the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true." (*Ibid.*) Where, as here, the parties offer conflicting accounts of the significance and meaning of their past conduct, such disputes cannot be resolved on summary judgment.

Because the Court finds Defendant's evidence sufficient to raise a triable issue of fact whether a contract exists, summary judgment must be denied. Moreover, as this issue is dispositive, the Court need not consider the remaining arguments of the parties, including those concerning service of the summary judgment motion.

Disposition

Based on the foregoing, Plaintiff's motion for summary judgment is **denied**.